

22CV01230 Jameson Moore et al vs Target Corporation et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Motion for Summary Judgment

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Tentative Ruling: Jameson Moore et al vs Target Corporation et al

Case Number

22CV01230

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/12/2026 - 10:00

Nature of Proceedings

Motion for Summary Judgment

Tentative Ruling

For all reasons stated herein, defendants Mitsubishi Electric US Inc. and Target Corporation's motion for summary adjudication is granted in part and denied in part as follows:

The motion is granted as to the second and third causes of action against Mitsubishi.

The motion is denied as to the punitive damages allegations against Mitsubishi and Target.

Background:

Plaintiffs Derek Moore, M.D. (Derek), Jameson Moore (Jameson), by and through his guardian ad litem Katy Kelly, M.D., and Jackson Moore (Jackson), a minor by and through his guardian ad litem Derek (collectively, Plaintiffs), filed their original complaint for damages on April 1, 2022, against Target Corporation (Target) and Mitsubishi Electric, US, Inc. (Mitsubishi). (Note: To avoid confusion due to common familial last names, the court will refer to Plaintiffs individually by their first names. No disrespect is intended.) Notwithstanding the causes of action identified in its caption, the complaint alleges four causes of action for: (1) negligence; (2) strict products liability—design defect; (3) strict products liability—failure to warn; and (4) fraudulent concealment.

On August 3, 2022, Plaintiffs filed a first amended complaint (FAC) against Target and Mitsubishi alleging four causes of action for: (1) negligence; (2) strict products liability—design defect (against Mitsubishi only); (3) strict products liability—failure to warn (against Mitsubishi only); and (4) fraudulent concealment.

On May 16, 2023, Plaintiffs filed a notice of related case identifying case number 22CV01182 entitled India Kenan, et al. vs. Target Corporation (the Kenan Action) as related to the present action.

On June 15, 2023, Plaintiffs filed an amendment to the FAC substituting Kone Inc. (Kone) for fictitiously named defendant Doe 6, where it appears on the FAC.

On July 19, 2023, the court entered an order in the Kenan Action, ordering that action related to the present action.

On February 9, 2024, Plaintiffs filed their second amended complaint (SAC) for: (1) general negligence (against all defendants); (2) strict products liability—design defect (against Kone and Mitsubishi); (3) strict products liability—failure to warn (against Kone and Mitsubishi); and (4) breach of implied warranty of merchantability (against all defendants). The factual allegations in the SAC were substantially the same as the allegations in the FAC.

On July 5, 2024, Plaintiffs filed the operative third amended complaint (TAC) setting forth the same causes of action as set forth in the SAC.

As alleged in Plaintiffs' operative TAC:

On November 10, 2021, Plaintiffs were customers at a Target store located at 3891 State Street in Santa Barbara. (TAC, ¶ 6.) Derek is the father of Jameson and Jackson who are natural brothers. (TAC, ¶ 27.) While Plaintiffs were descending an escalator at the Target store, Jameson lost part of his right little finger when an amputation occurred. (TAC, ¶¶ 8-11.) Derek and Jackson witnessed the amputation. (TAC, ¶37.)

Target retained Mitsubishi to maintain the escalator. (TAC, ¶ 9.) Both Target and Mitsubishi were responsible for the safe operation, maintenance, and repair of the escalator. (Ibid.)

An identical incident occurred at the same Target store on June 21, 2021. (TAC, ¶ 8.) Four-year-old India Kenan, who is not a party to this action, was descending the same escalator with her father when the small finger of India Kenan's right hand was amputated. (Ibid.) Target and Mitsubishi received notice and knowledge of the defective nature of the escalator after India Kenan suffered injury as described above. (Ibid.)

There was an opening in the skirt or apron of the escalator large enough for human fingers and other body parts to get caught and amputated. (TAC, ¶ 15.) Defendants had actual notice that the escalator was defective and exposed customers and their children to amputations and other injuries. (TAC, ¶ 11.) Defendants failed to shut down, repair, modify, or fix the escalator before other customers could use it. (TAC, ¶¶ 12-14.) Defendants also concealed the defective condition of the escalator from Plaintiffs and the general public and did not warn the public or Target customers that the escalator was dangerous. (TAC, ¶ 16.)

On August 6, 2024, Mitsubishi filed an answer to the TAC generally denying the allegations therein and setting forth 26 affirmative defenses.

On August 6, 2024, Target filed an answer to the TAC generally denying the allegations therein and setting forth 25 affirmative defenses.

On September 24, 2025, defendants Mitsubishi and Target filed the present motion for summary adjudication. By way of the motion, Mitsubishi argues that there are no triable issues of material fact as to the second cause of action for strict products liability - design defect, and the third cause of action for strict products liability - failure to warn, as to Mitsubishi. Mitsubishi and Target also argue that there are no triable issues of material fact that would allow punitive/exemplary damages against either of them.

On March 30, 2026, plaintiffs filed their opposition and concede that there are no triable issues of material fact regarding the second and third causes of action against Mitsubishi. However, plaintiffs argue that there are triable issues of material fact that preclude the granting of summary adjudication as to the issue of punitive damages.

Analysis:

Page Limit

As an initial matter, plaintiff filed an over-length opposition without obtaining leave to do so. The request, at page 28 of the opposition, is insufficient. Plaintiffs' counsel is admonished to comply with all California Rules of Court, and other statutory requirements, for any further filings with the court. While the court could exercise its discretion and decline to consider the nonconforming opposition, the court will, this time, exercise its discretion and consider it.

Standard on Summary Adjudication

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

"A defendant ... has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant ... has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the

moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.) “[W]e liberally construe plaintiff’s evidentiary submissions and strictly scrutinize defendant’s own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff’s favor.” (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64.)

In resolving the motion, the court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.) Any doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion. (Molko v. Holy Spirit Assn., supra at p. 1107.)

Second and Third Causes of Action against Mitsubishi

As noted above, plaintiffs concede that Mitsubishi is not liable under the second and third causes of action.

“Plaintiff does not contest that Defendant Mitsubishi is not liable for strict products liability: design defect.” (Pltf Response to Def Sep Stmt, p. 2, ll. 26-27.)

“Plaintiff does not contest that Defendant Mitsubishi is not liable for strict products liability: failure to warn.” (Pltf Response to Def Sep Stmt, p. 3, ll. 4-5.)

The motion will be granted as to the second and third causes of action against Mitsubishi.

Punitive Damages

“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).)

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

“ ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).)

“ ‘Oppression’ ” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

“ ‘Fraud’ ” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

"Since the 1987 amendments to Civil Code section 3294, oppression, fraud, or malice must be proven by " 'clear and convincing' " evidence. These amendments indicate that the Legislature intended the evidentiary standard to provide a statutory limitation on the award of punitive damages. [Citation.] In ruling on a summary judgment or summary adjudication motion, " 'the judge must view the evidence presented through the prism of the substantive [clear and convincing] evidentiary burden. . . . [¶] [This] holding that the clear-and-convincing standard of proof should be taken into account in ruling on summary judgment motions does not denigrate the role of the jury. It by no means authorizes trial on affidavits. Credibility determinations, the weighing of the evidence, and the drawing of legitimate inferences from the facts are jury functions, not those of a judge, whether he is ruling on a motion for summary judgment or for a directed verdict.' " [Citations.]" (American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2002) 96 Cal.App.4th 1017, 1049.)

Mitsubishi and Target argue that they cannot be held liable for punitive damages because:

"No employee, officer, director, or managing agent of Defendants Mitsubishi or Target has ever engaged in any conduct with respect to the Escalators prior to the date of the incident that was intentional or "despicable" in conscious disregard of Plaintiffs' rights or safety. (See SSUMF, No. 19). No employee, officer, director, or managing agent of Defendants Mitsubishi or Target has ever intentionally conceal a material defect known to them to pose a serious risk of harm to their customers, particularly children. (See SSUMF, No. 20). Defendants Mitsubishi and Target have also never prioritized profits over the safety of minor children. (See SSUMF, No. 21). No officer, director, or managing agent of Defendants Mitsubishi or Target has ever had actual knowledge of any dangerous conditions pertaining to the Escalators, or failed to make adequate repairs to any allegedly dangerous condition, or warn the public of any such condition which could cause injury to the public, given that Defendants Target and Mitsubishi had no actual knowledge of any such conditions which purportedly caused Plaintiffs' alleged damages. (See SSUMF, No. 22). No officer, director, or managing agent of Defendants Mitsubishi or Target ever authorized or ratified the alleged conduct of its employees with respect to the conduct alleged in the TAC. (See SSUMF, No. 23). No officer, director, or managing agent of Defendants Mitsubishi or Target knew in advance that one of its employees were likely to commit such acts, or employed him or her " 'with conscious disregard of the rights or safety of others.' " (See SSUMF, No. 24)." (Motion, p. 20, l. 12 - p. 21, l. 2.)

The argument, as well as the purported evidence supporting the argument, is entirely conclusory and riddled with legal conclusions. It is, in effect, an attempt to conduct a trial on affidavits of defendants' employees. Even if Mitsubishi and Target had met their initial burden, which the court does not find they did, plaintiffs have provided evidence that there are several triable issues of material fact. These, as contained in plaintiffs' separate statement of additional disputed facts (PUMFs), include, but are not limited to:

"Target requires all staff to follow a very specific protocol following a customer incident. After an incident involving a guest occurs, Target corporate policy dictates that a guest incident report must be submitted into the electronic incident reporting system within 24 hours. Additionally, a guest incident investigation kit provides " 'step-by-step' " instructions on how to investigate and/or memorialize conditions and activities immediately before, during, and after the incident. The kit requires employees to photograph the scene of the incident and ensure any witnesses to the incident, including employees, prepare witness statements." (PUMF No. 10.)

"The gap between the solid glass balustrade and solid steel decking is supposed to be covered by a plastic retaining trim piece. The purpose of this plastic trim piece is to ensure objects cannot fall between the steel inner decking and glass balustrade, as well as to ensure body parts or customer clothing do not get caught in this gap on a moving escalator." (PUMF No. 11.)

"Dangerous gaps are known to occur due to foreseeable consumer misuse and incidental damage, such as dropping debris or baggage, stepping or jumping on the steel inner decking. It is also common knowledge that children are particularly susceptible to both misusing the escalator and (as a direct result) suffering an injury from an escalator malfunction." (PUMF No. 12.)

"Corporate policy also dictates specific policies with respect to preserving and disseminating security footage of any/all customer incidents. Employees are required to " 'partner immediately' " with Asset Protection to ensure Asset Protection

obtains security footage of the incident, as well as the 30 minutes before and after the incident.” (PUMF No. 13.)

“Asset Protection retains near exclusive purview and discretion over retaining security footage and, critically, determining whether such footage is shared outside of Asset Protection.” (PUMF No. 15.)

“Thus, unless expressly authorized to do so by Asset Protection, Target corporate policy prohibits sharing of security footage even in the event such footage may be the only way to determine how a specific incident occurred and what is required for repair.” (PUMF No. 16.)

“Despite acknowledging the purpose of information gathering is theoretically to determine the cause of any incident to ensure such incidents are avoided in the future, Target’s corporate policy does not require personnel to complete an independent investigation. With respect to any investigation regarding the cause of an incident on an escalator, Target claims it “ ‘exclusively’ ” relied on Mitsubishi (rather than any Target employee) to examine, investigate, and repair an escalator following an incident.” (PUMF No. 17.)

“Critically, Asset Protection maintained the surveillance footage of the incident, which clearly depicted where India’s finger was initially caught at the top of the down escalator.” (PUMF No. 20.)

“Consistent with Target’s corporate policy, Gale Kopitzke, Target’s property management lead in charge of facility maintenance and maintaining third party vendor relationships at this location, immediately called Robert Phelan, Mitsubishi’s designated Service Repair Mechanic for this location, and submitted a work order request.” (PUMF No. 21.)

“Phelan sought to obtain “ ‘as much information’ ” as he could prior to making any repairs on the escalator and explicitly requested to view the surveillance footage of the incident. Obtaining as much accurate information regarding an incident is a “ ‘big deal’ ” because “ ‘[w]hen there’s an injury, you have to zero in on at least the equipment.’ ” Target denied Phelan’s request – citing corporate policy prohibiting footage from being viewed by third parties, even if such footage is the only evidence accurately depicting how this incident occurred.” (PUMF No. 24.)

“As a result, Phelan performed a limited inspection of the bottom of the escalator. Defendants did not perform any detailed inspection of the trim piece or decking along the entire length of the escalator. Neither the decking nor trim piece were removed for closer inspection. Indeed, Defendants did not even discuss addressing potential gaps along the trim piece at this time.” (PUMF No. 25.)

“There is no dispute that these individuals with direct knowledge of the June 2021 incident constituted officers, directors, and/or managing agents with sufficient authority within Target’s corporate structure to determine corporate policy. Each of these individuals had sufficient authority and discretion to view the surveillance footage of the June 2021 incident to help determine the exact cause or, at a minimum, location of the June 2021 incident.” (PUMF No. 35.)

“Neither Target nor Mitsubishi ever contacted any state regulatory agency, such as city inspectors or Cal/OSHA, following the June 2021 incident.” (PUMF No. 37, emphasis omitted.)

“Both Target and Mitsubishi admit that they never determined the exact cause of the June 2021 incident.” (PUMF No. 42.)

“Despite never having identified the explicit cause of the June 2021 incident or confirming that the necessary repairs were made, corporate officers Fournier and Tellez authorized the escalator to be turned back on.” (PUMF No. 46.)

“Though Fournier knew that Target’s contract with Mitsubishi required Mitsubishi to prepare an incident report identifying the cause of the incident and subsequent repairs addressing that cause, Fournier never reviewed let alone requested such an

incident report to be prepared following the June 2021 incident.” (PUMF No. 47.)

“On November 15, 2021, Dr. Moore notified the Santa Barbara City Inspector’s Office regarding his son’s injury. Given the fact that a child had been reported injured, Santa Barbara City Inspector Blackwell was given an “ ‘emergency assignment’ ” and was immediately dispatched to the Target location to investigate the complaint. When he arrived at the Target that same day, Blackwell visually inspected the escalators and noted the lower portion of the down escalator was “ ‘out of adjustment, so that it would allow either a pet or small child to put an extremity in there somehow.’ ” (PUMF No. 54.)

“Blackwell immediately spoke to the store manager, shut the power off to the escalator, and then barricaded the escalators so they could no longer be used. The Target store manager did not provide any explanation to Blackwell as to why the escalators were still running after such an incident.” (PUMF No. 56.)

“On November 16, 2025, Phelan inspects the escalator again following Target’s work order request. In Mitsubishi’s internal records, Phelan wrote: “ ‘I did inspections on both escalators today and they are cleared to run by me and the state of California.’ ” (PUMF No. 58, emphasis omitted.)

“Again, there is no evidence that either Target or Mitsubishi reported this entity to any state agency, let alone had any state agency present on this date.” (PUMF No. 59, emphasis omitted.)

These PUMFs, and others, create conflicting inferences that must be resolved in favor of the party opposing summary adjudication. While the court renders no opinion regarding their ability to eventually prove their arguments, by clear and convincing evidence at trial, plaintiffs have submitted evidence that would tend to show managing agents, of both Mitsubishi and Target, engaged in actions, or lack of actions, that a reasonable trier of fact could conclude constitutes conscious disregard for the safety of others.

The motion for summary adjudication of punitive damages will be denied.

Judges

Judge Donna D. Geck

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